

4TH Cause of Action - NIED

In addition to two causes of action for negligence, Plaintiffs assert a cause of action against Uber for NIED. There is no independent tort of NIED; the tort is negligence. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984.) As Uber correctly points out, a demurrer is properly sustained as to a duplicative cause of action “which adds nothing to the complaint by way of fact or theory.” (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135) As Plaintiff asserts two separate negligence causes of action against Uber [FAC at ¶¶ 28-60], emotional distress damages are recoverable under those causes of action (if proven), and the NIED cause of action adds nothing to the negligence claim [see, FAC at ¶¶ 74-78.] SUSTAINED

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508584	MATTISON VS LOPEZ	MOTION TO STRIKE ON 1ST AMENDED COMPLAINT OF ALINA MATTISON

Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

This action arises out of a motor vehicle accident. On November 6, 2025, Plaintiffs Alina Mattison (“Mattison”), William Montagne (“Montagne”), and Shannon Weston (“Weston”) (together “Plaintiffs”) filed a Complaint against Defendants Richard Kenneth Lopez (“Lopez”), City of La Quinta (“City”), and County of Riverside (“County”) for (1) negligence/negligence per se; (2) violation of Gov. Code § 835; and (3) loss of consortium. On March 27, 2026, the parties stipulated, and the Court entered an order allowing Plaintiffs to file a First Amended Complaint (“FAC”) in which they dismissed City and County as defendants, added Defendant Uber Technologies, Inc. (“Uber”) as a defendant, and added new causes of action arising out of Uber’s alleged involvement in the incident. On April 2, 2026, Plaintiffs filed the FAC asserting the following causes of action: (1) negligence/negligence per se; (2) negligence; (3) negligent hiring/retention/supervision; (4) negligent infliction of emotional distress (“NIED”); and (5) loss of consortium.

In the FAC, Plaintiffs allege that on December 12, 2024, Mattison was driving on Airport Boulevard in La Quinta with Weston in the front passenger seat, when she was struck by a vehicle driven by Lopez when he failed to stop at a stop sign. (FAC at ¶¶ 11-12, 35-36.) Lopez was driving for Uber at the time he struck Plaintiffs’ vehicle. (FAC at ¶¶ 25, 29.) Uber solicits and retains non-professional drivers, who apply on-line by providing a driver’s license, vehicle registration, and proof of insurance, and completing a background check. (FAC at 21-23.) Uber uses a smartphone application (“app”) to operate its transportation and delivery services, and that app connects drivers with users who need a ride or delivery services (the “Uber App”). (FAC at ¶¶ 16-18.) Through the Uber App, Uber stays in constant contact with its drivers; directs the driver to the customer’s location; determines the route to be used by the driver; and provides turn-by-turn directions to the driver throughout the trip. (FAC at ¶¶ 19, 26(f).) Uber requires its drivers to use the Uber App while they are driving, and it causes driver distraction and inattention to the actions of others. (FAC at ¶ 53.) At the time of the accident, Lopez was logged on and using the

Uber App, and it caused distraction, such that it was the proximate cause of the accident. (FAC at ¶¶ 25, 53.)

Uber moves to strike Plaintiffs' claim for punitive damages arguing that the allegations do not show Uber acted with malice, fraud or oppression, or that any officer, director, or managing agent authorized or ratified such conduct.

In opposition to the motion to strike punitive damages, Plaintiffs argue that the facts alleged that Uber made a deliberate decision to require its non-professional drivers to operate their vehicles while interacting with a distracting app.

Motion to Strike

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(C.C.P. § 436).

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (C.C.P. § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) On a motion to strike, as with a demurrer, "the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Sup. Ct.* (1998) 62 Cal.App.4th 981, 984, n. 2.) A motion to strike is the proper vehicle to attack a punitive damages claim where the facts alleged do not rise to the level of fraud, malice or oppression. (C.C.P. §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (Civ. Code § 3294(a).) "Malice" means either the defendant intended to cause injury to plaintiff or the defendant's conduct was "despicable" and carried on with a willful and conscious disregard of the rights and safety of others. (Civ. Code, § 3294(c)(1).) "Oppression" is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civ. Code, § 3294(c)(2).) "Despicable conduct" is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715.)

Recovery of punitive damages is predicated on a showing of "[s]omething more than the commission of a tort... There must be circumstances of aggravation or outrage, such as spite or 'malice' or a fraudulent or evil motive on the part of defendant, or such conscious and deliberate disregard for the interests of others that his conduct may be called willful or wonton." (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-895 [quoting Prosser, Law of Torts (4th ed. 1971) §2, at pp. 9-10]; see also *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 328.) Under the 1987 amendments to section 3294 "[t]he statute's reference to 'despicable' conduct seems to represent a new substantive

limitation on punitive damage awards. Used in its ordinary sense, the adjective ‘despicable’ is a powerful term that refers to circumstances that are ‘base,’ ‘vile,’ or ‘contemptible.’ [Citation.] As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) “In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Taylor, supra*, 24 Cal.3d at 895-896.)

Additionally, claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29; *Grieves v. Sup. Ct.* (1984) 157 Cal.App.3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Rather, the pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 317.)

Here, while Plaintiffs allege that Uber developed and requires its drivers to use an app that causes distracted driving, these allegations are insufficient to support a claim for punitive damages. There are no allegations that Uber was aware of the probable consequences of the Uber App or that it deliberately failed to avoid those consequences. (*Taylor, supra*, 24 Cal.3d at 895-896.) Accordingly, the motion to strike must be granted.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509877	MORENO VS CARDENAS MARKETS, LLC	MOTION TO COMPEL RESPONSE TO PRODUCTION OF DOCUMENTS REQUEST BY JAIME MORENO

Tentative Ruling: Granted.

No opposition filed.

Responding party is ordered to serve verified responses to the Demand for Production of Documents, Set One, Nos. 1-4, without objections within 30 days of service of notice (CCP § 2031.310). Responding party is further ordered to pay attorney’s fees and costs to moving party in the amount of \$967.50 within 30 days of service of notice. (CCP 2023.010, 2030.290 (c), 2031.310, and 2033.280.)

Moving party ordered to give notice pursuant to CCP §1019.5.